Residential & Mixed-Use Developments



5 Residential & Mixed-Use Developments

5.1 All residential

5.1.1 Fences and Retaining Walls – General Controls

Objective		Control	
O1.	To provide a fence height that achieves privacy and security and activates the public domain. **Note**: Matters related to fencing arrangements between neighbouring lots are regulated by the Dividing Fences Act 1991.	**C1.**	The maximum height of front fences are: a. 1.5m if at least 50% transparent b. 1.2m if less than 50% transparent *(Refer to **Figure 15**)* **NB:** Council may consider taller fences where properties adjoin significantly busy or hostile road corridors. The visual impacts of taller fencing must be offset by means of additional landscaping provision.
O2.	To provide a fence height that responds to the characteristics of the site, streetscape and the amenity of adjoining land. **Note**: Fences perform a number of functions that have the potential to conflict with each other. On this basis, decisions on fences are based on merit. It is recommended that the applicant consult with Council early in the design development stage to discuss an appropriate approach to fencing. **Note**: Matters related to dividing fencing arrangements between neighbouring lots behind the front building line are regulated by the Dividing Fences Act 1991.	**C2.**	For dwelling houses, the top 50% of a front fence is to be transparent or open style to allow for passive surveillance.
		C3.	The maximum height of a fence along a road is: a. 1.5m along a road other than a classified road, where C1 is met b. 1.5m along a classified road c. 1.8m where at least 30% transparent along a classified road
		C4.	Fencing located along side boundaries tapers down from the front building line to the street frontage.
		C5.	The height of a fence and/or wall along a sloping street shall be: a. a maximum combined height of 2.0m, regularly stepped so there is a maximum height above footpath level of 1.2m
O3.	To provide retaining walls that respond to the characteristics of the site, streetscape, and the amenity of adjoining land.	**C6.**	The maximum height of a fence along a side or rear boundary is 1.8m.
		C7.	Fences do not cause unreasonable amenity impacts on adjoining land, in particular in relation to solar and daylight access, natural ventilation, outlook or views.
		C8.	The maximum height of retaining walls along a road is 1m.
		C9.	Retaining walls along a road are located to allow site responsive tree planting within the setback.
		C10.	Retaining walls do not cause unreasonable amenity impacts on adjoining land, in particular

Objective		Control	
			in relation to solar and daylight access, natural ventilation, ponding, outlook or views.
		C11.	Fence controls for Heritage Items and in Heritage Conservation Areas must be consistent with the requirements of **Section 3.4** (Heritage) of this DCP.



Figure 15: Front fences diagram

5.1.1.1 Fence design and materials

Objective		Control	
O1.	To ensure fence design, pattern, style, materials, and construction are compatible with the envisaged streetscape and local character.	**C1.**	Sandstone fences and walls that are significant or represent important character elements for a locality are to be retained and, if necessary, repaired.
		C2.	Modifications to existing stone fencing and walling are to utilise the same materials and construction technique.
		C3.	Fences and walls are constructed of robust and durable materials which reduce the possibility of graffiti.
		C4.	The siting, height, scale, design, materials, colours and other elements of the fences are to: a. where in a heritage conservation area, be compatible with the period or architectural style of existing development on the site be compatible

Objective		Control	
			with the predominant fencing pattern in the streetscape
		C5.	Fences along a road comprise: a. decorative timber metal slats, battens or picket masonry
		C6.	Fences along a road do not include colourbond.
		C7.	Post tops and paling tops visible from the public domain are to be shaped or tuned in a decorative manner that complements the development.
		C8.	Fences are to be designed to highlight entrances and be compatible with buildings, letterboxes and garbage storage areas.
		C9.	Provision is to be made for access to public utility installations.
		C10.	Landscaping documentation provided with any development application is to provide details of all proposed fencing, including: a. style (manufacturer, product code and name) b. materials and colour/s installation method
Fence design to manage hazards			
O2.	To minimise nuisance when locating and designing fences, such as stormwater, flooding, vehicular access, traffic, and the like.	**C11.**	Where in floodways: a. fences are not erected b. where fences are necessary, they are of open construction so as to not restrict the flow of water
		C12.	Fences do not obstruct existing overland flow paths or stop or redirect surface waters so as to cause a nuisance.
		C13.	Fences over 1m in height take into consideration sightline issues where adjoining vehicular access. **Note**: Fence design can address this control by setbacks or by using splays with minimum dimensions of 900mm x 900mm in accordance with Figure 3.3 in Section 3.2.4 of AS/NZS 2890.1.
		C14.	For low and medium density residential development where a vehicular entrance is proposed in conjunction with a fence greater than 1.2m in height, a 45 degree splay or its equivalent is to be provided either side of the

Objective		Control	
			entrance to ensure driver and pedestrian safety. **Note**: The splays are to have minimum dimensions of 900mm x 900mm in accordance with Figure 3.3 in Section 3.2.4 of AS/NZS 2890.1.
		C15.	Gates that are manually operated are to be setback a minimum of 5.5m from the kerb line to allow a vehicle to stand fully off the road.
		C16.	Gates must not encroach over the street alignment when opening or closing.

5.1.2 Ancillary residential uses - rear and side lane additions, detached garages, secondary dwellings and studios

This Section outlines controls for the non-primary building located on a site. These controls primarily relate to secondary dwellings or ‘granny flats’ and small-scale studio spaces, as well as other miscellaneous outbuildings.

5.1.2.1 General

Objective		Control	
O1.	To minimise control the size, bulk and scale of ancillary structures and their visual impact on public spaces and minimise amenity impacts on surrounding properties.	**C1.**	Buildings must have a minimum setback to a side and rear boundary of 900mm. Windows and glass doors are to face into the property. High and opaque windows may face onto a neighbouring property where lack of adverse impact can be demonstrated. **Note:** A nil setback is to be considered if implementing masonry building walls with no eaves, gutters or windows and for carports and open structures, such as pergolas, awnings and the like for narrow lots where impacts are minimal and this is the prevailing pattern in the area. Compliance with the Building Code of Australia is required.
		C2.	Outbuildings are not to result in non-compliances relating to minimum landscaped area, private open space, overshadowing, privacy and other relevant provisions which apply to the development, including those outlined in SEPP (Housing) 2021.

Objective		Control	
		C3.	Where the LEP height control enables the development of a 2 storey outbuilding, the second storey of the building must have a traditional pitched form with dormer windows and generally be contained as an attic.
		C4.	Outbuildings are to be located behind the main street face of the development.
		C5.	Where multiple ancillary structure outbuildings are proposed on one property, combining these within a single structure is encouraged. Consideration is to be given to roof form and pitch to ensure bulk and scale impacts are minimised.
		C6.	Where multiple outbuildings and/or a secondary dwelling are/is proposed on one property, the cumulative floor area is not to exceed 70m².
		C7.	Outbuildings attached to a secondary dwelling are not to provide direct access between them. Solid wall construction must be provided.
		C8.	The selection of materials and colours must be compatible with the surrounding natural environment and the dwelling.
		C9.	Where an outbuilding is proposed within a Heritage Conservation Area, the built form controls of that HCA prevail over any inconsistencies with this Section.

5.1.2.2 Development on Side and Rear Lanes

Objective		Control	
O1.	To ensure buildings to rear or side lanes are compatible with the principal dwelling and adjoining sites, maximise safety, ensure adequate vehicular access and minimise amenity impacts.	**C1.**	The prevailing setback to a rear or side lane is to be retained. **Note:** A minimum setback of 900mm is to be provided from any garage or carport to a rear lane to ensure access complies with AS2890 and adequate site lines are achieved.
		C2.	The secondary dwelling/outbuilding on a lot adjoining a rear lane is to be clearly subservient to the principal dwelling.
		C3.	For properties with rear lane access or fronting another street, the secondary

Objective		Control	
			dwelling/outbuilding must address the lane/street as if it were the primary frontage.
		C4.	Outbuildings with a frontage to a rear lane or side lane may include an attic level subject to compliance with other relevant controls (including, but not limited to, the height control and overshadowing provisions) and the following: a. the structure does not exceed a maximum street wall height (or side wall height if not presenting to a street) of 3.6m b. the structure does not exceed a maximum roof height of 6 m c. the pitch of the roof does not exceed 36 degrees d. dormer windows are permitted provided each complies with the following design criteria: i. the minimum distance between the main roof line and the dormer window structure is 300mm measured vertically ii. the dormer window does not have a total width of more than 25% of the width of the roof, or 1.2m, whichever is the lesser iii. adverse privacy impacts do not result (surveillance of laneways is encouraged)
		C5.	On lots smaller than 150m^2, a secondary dwelling is not permitted unless it can achieve a minimum consolidated area of private open space for the principal dwelling of 16sqm with a minimum dimension of 3m.
		C6.	Where a rear lane is highly intact, the pattern of original outbuildings, fences and laneway widths must be retained.
		C7.	Development is to retain the predominant scale of the lane, particularly where that scale is single storey, and any landscape features including mature trees.

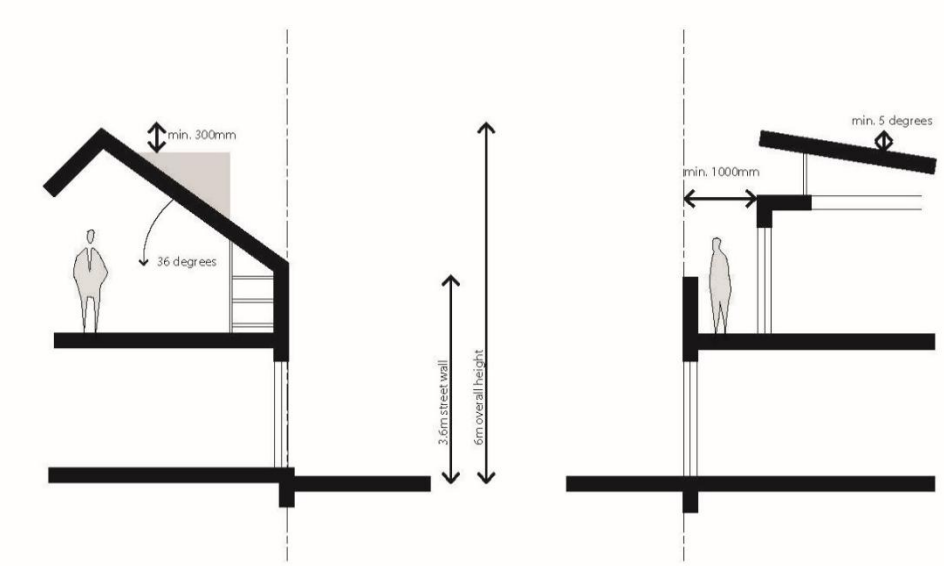


Figure 16: Outbuilding height diagram

5.1.3 Swimming Pools, Spa Pools, and Child-Resistant Barriers

This Section outlines the controls related to swimming pools, spa pools and child-resistant barriers where development consent is required.

Objective		Control	
O1.	To locate, design and operate swimming pools to respond to site features, reduce water consumption and enhance the amenity of residents on and adjoining the site.	**C1.**	Swimming pools and spa pools are sited to minimise unreasonable impact on the following: a. natural landform b. habitable rooms and the principal private open space of adjoining properties
		C2.	Swimming pools, spa pools and associated structures such as decks or coping are: a. located at ground level b. where a site slopes, have a maximum height above existing ground level of 500mm
		C3.	Swimming pools and spa pools are not located within the front setback.
		C4.	Minimum setbacks for swimming pools and spas to side and rear boundaries from the coping are: a. 1m b. where adjoining a habitable room of a neighbouring dwelling, a setback greater than 1.5m may be required in order to protect the amenity of residents

Objective		Control	
		C5.	Pumps, filters and other noise emitting devices are located away from habitable rooms and the principal private open space of adjoining dwellings and/or enclosed or screened by appropriate, visually unobtrusive noise mitigating devices. Any devices are located and designed in accordance with the offensive noise provisions of the Protection of the Environment Operations Act 1997.
		C6.	Water discharged from pools during maintenance or cleaning does not cause unreasonable nuisance or harm to adjoining properties.
		C7.	Setbacks may be required to protect existing trees including their root systems, as well as trees on adjoining properties.
		C8.	A geotechnical report is required where the site is located in a groundwater exclusion zone.
		C9.	Any structure that is elevated above ground level is suitably screened by planting. **Note**: Planting details are to be provided on the landscape plan.
		C10.	Swimming pools are to be sited to maximise solar access. **Note**: Locating pools in this manner reduces reliance on energy systems to provide water heating.
		C11.	Water tanks are installed to provide water for pools as follows: a. pool size up to 20,000 litres: 1,000 litre tank b. pool size of 20,000 to 40,000 litres: 2,000 litre tank c. pool size over 40,000 litres: complies with BASIX
		C12.	Where swimming pools are proposed on Flood Prone Land 1, swimming pools and associated structures achieve the following: a. do not obstruct a floodway b. do not exacerbate flooding into neighbouring properties c. do not drain to the properties external stormwater network d. drain into the sewer network

Objective		Control	
		C13.	The surrounds or concourse of a swimming pool shall have a minimum 1% grade towards the pool to prevent surface waters (e.g. from rainfall) overflowing into the adjoining properties. In some instances, additional surface drains may be required.

5.1.4 Quality of Design and Housing Choice and Diversity

This section provides controls outlining requirements to enable good quality housing design and supports improved housing choice and diversity by encouraging a range of apartment types and sizes and housing typologies including multi-dwelling housing and terraces.

Objective		Control	
O1.	To ensure development responds to and positively reinforces predominant streetscape qualities.	**C1.**	Development is to be consistent with design excellence provisions outlined in the Bayside LEP 2021.
O2.	To ensure building bulk and scale does not create visually overbearing development and does not have unreasonable amenity impacts on adjoining dwellings.	**C2.**	Development applications must be accompanied by a Site Analysis that demonstrates: a. the prevailing characteristics of an area within which a development site is located; b. the opportunities and constraints of a development site; c. the relationship between a development site and its surroundings; and d. How the analysis under (a)-(c) has been used to inform the design of the proposed development such that impacts on neighbouring properties and the locality are minimised.
O3.	Ensure development individually and collectively contributes to the architectural and overall urban design quality of the local government area.		
O4.	Encourage variety in architectural design and character across large developments to provide a fine grain which enriches and enlivens Bayside Council's public realm.		
O5.	Ensure residential development encourages housing choice and diversity for all residential development types.	**C3.**	Developments are to utilise high quality materials and finishes, as well as demonstrate an architectural form and expression that positively responds to the desired future character of the area.
		C4.	Developments are to comprise a mix of apartment types, where gardens, adaptability and accessibility are more easily achievable for elderly people, families with children, or people living with disabilities. Developments that propose more than 20 dwellings are to provide a mix of dwellings

Objective		Control	
			consistent with the following percentage mix: a. Studio: 5 - 10%; b. 1 bedroom: 10 – 30% c. 2 bedroom: 40 – 75%; and d. 3+ bedroom: 10 - 100% The maximum percentage of 1-bedroom dwellings may be increased above 30% provided the number of studio dwellings and 1-bedroom dwellings combined does not exceed 40% of the total dwellings proposed is 196.
		C5.	Adaptive re-use of existing structures may propose an alternative mix where it can be demonstrated that the existing structure restricts compliance with provision C4 above.
		C6.	New development is to demonstrate that internal designs allow adaptation to different uses over time by: a. showing internal walls that can be easily removed; b. locating services where they will not impede the future conversion of the unit into a different configuration; and c. incorporating, in at least 10% of dwellings in a development, the opportunity for parts of a dwelling to be separately or independently occupied, for example, dual key apartments without reducing the total percentage of any dwelling types below the minimum percentages defined in (C4) above.
		C7.	Family friendly apartments of 3 bedrooms or more are to be located on the lower four floors of the building.
		C8.	First floor balcony depths should be designed to ensure amenity and privacy are retained to neighbouring properties. A depth of 2,500mm is generally considered a suitable outcome, although deeper balconies may be permitted where it can be shown that no unreasonable impacts will result on surrounding properties.

5.2 Residential & Mixed-Use Development

5.2.1 Low-density residential (dwellings, dual occupancy, semi-detached dwellings)

These controls should be read in conjunction with the General residential housing controls and are the primary controls relevant to low-density dwelling typologies including dwellings, dual occupancy dwellings and semi-detached dwellings. Additional particular controls relevant for semi-detached and dual-occupancy dwellings are also outlined.

5.2.1.1 Streetscape, Local Character and Quality of Design

Objective		Control	
O1.	To ensure that dwellings are compatible with the envisaged local streetscape and desired future character.	**C1.**	Development is to be designed to reflect the relevant local character in Chapter 7 and reinforce the architectural features and identity which contribute to the desired future character of the area.
O2.	To create visual interest through building articulation and a variety of compatible materials, finishes and colouring.	**C2.**	Development is oriented to be parallel with the primary road. Development sites with two or more frontages should address both frontages. **Note**: Council may vary this control where the lot has an irregular boundary to the primary road.
		C3.	Proposed materials for low density dwellings should not include extensive areas of glass sheeting and glass blocks. Painting, rendering, or bagging of any original unpainted masonry or sandstone surfaces or cladding that provides a positive contribution to the streetscape character and requires maintenance is not permitted.
		C4.	Where alterations or additions are proposed, the materials must be compatible with those of the existing building and/or desired future character of the streetscape.
		C5.	Elevations should avoid large expanses of blank walls through the following: a. a harmonious composition of varied building elements b. recesses and projections c. changes in texture, material, detail and colour **Note**: for Dwelling Houses, Semi-Detached Dwelling and Secondary Dwellings,

Objective		Control	
			completely rendered buildings with a box shape envelope will not be supported.
		C6.	Development on sites with two or more frontages should address both frontages.

5.2.1.2 Built Form Controls

Objective		Control	
O1.	To ensure building height is compatible with the existing and envisaged built form of the site's surrounds, having regard to natural landform (topography), amenity and local character. **Note:** Preferred future local character for specific localities is identified in **Chapter 7** – Location Specific Controls of this DCP.	**C1.**	Maximum building height above ground level in metres complies with clause 4.3 of the Bayside LEP 2021.
		C2.	Maximum building height above ground level (existing) in storeys excluding basements is: a. for a Dwelling House, Semi-Detached Dwelling and Dual Occupancy: 2 storeys b. for a Secondary Dwelling: 1 storey c. for any of the above uses located at the rear of a site or on a battle axe: 1 storey.
O2.	To ensure building length is broken up to reflect the low-density character of adjoining sites.		
O3.	To ensure roof form, pitch, materials, and colours are compatible with those prevailing in the surrounding area.	**C3.**	A Secondary dwelling may be located at first floor level above a garage or outbuilding which fronts a rear lane or side street subject to compliance with: a. outbuilding controls in Sub-section 5.1.2 b. relevant provisions in Chapter 3 – General c. other relevant provisions in this section
O4.	To ensure that void spaces in dwelling houses are designed to increase the amenity of a dwelling, and that the provision of such spaces does not lead to diminution in the amenity of adjacent properties.		
		C4.	Maximum building length is compatible with that of adjoining sites. Two or three storey developments are only permitted towards the front of an allotment and may only extend to a maximum of 70% of the depth of the site measured from the front property boundary. **Note:** For Secondary Dwellings the total length of both the Secondary Dwelling and Dwelling House is to be considered.

Objective		Control	
		C5.	Buildings must provide horizontal and vertical articulation of external walls to create visual interest and reduce building bulk.
		C6.	Where roof forms in a streetscape are predominantly pitched, roof pitches are to be between 22.5 degrees and 40 degrees.
		C7.	Flat or skillion roof forms may be located to the rear of a development site provided it is not a corner location and does not detract from the streetscape.
		C8.	Pitched roofs must have a minimum eave overhang of 450mm (excluding gutters).
		C9.	An attic may be used as a habitable room provided that: a. it is part of the dwelling immediately below b. it is incapable of being used as a separate dwelling c. it is contained wholly within a roof space above the ceiling line of the storey immediately below, except for minor elements such as dormer windows d. windows are limited to small dormer windows
		C10.	Voids are to connect related uses and spaces and should not compromise the useability of spaces or result in an unreasonable loss of amenity for the residents.
		C11.	Void spaces must be designed so as not to be reasonably capable of future infill. Voids in developments which exceed the permitted FSR will not be supported. Similarly, the infill of any existing void must not result in overdevelopment of the site by exceeding the maximum permitted FSR.

5.2.1.3 Setbacks

Objective		Control	
O1.	To ensure building setbacks are compatible with the envisaged	**C1.**	Minimum building setback to a primary road is either:

Objective		Control	
	streetscape and provide a reasonable level of amenity based on the adjacent road environment.		a. the average of the dwellings on adjoining lots; b. otherwise, 6m.
O2.	To ensure an appropriate level of visual and acoustic privacy between a development and its adjoining sites, as well as providing sufficient space for access, landscaping and private open space.	**C2.**	Minimum building setback to a secondary road is 1.5m
		C3.	Minimum building setback to a rear lane is: a. where habitable: 1.5m b. where non-habitable: 1m
O3.	To positively contribute to the streetscape through building articulation and building elements that encourage engagement between the development and public domain.	**C4.**	Minimum building setback to a road identified as a Key Freight Route may be required to have a greater setback. Key Freight Routes are identified at: https://data.datahub.freightaustralia.gov.au/ne/dataset/national-key-freight-routes-map
		C5.	Minimum building setback to a rear boundary is 5m.
O4.	To ensure an appropriate level of visual and acoustic privacy between a development and its adjoining sites as well as providing sufficient space for access, landscaping and private open space.	**C6.**	Minimum building setback to a side boundary is 0.9m (ground floor) and 1.5m (first storey and above).
		C7.	A dwelling house with a setback from a primary road of at least 3m may have an articulation zone that extends up to 1.2m forward of the minimum required setback from the primary road.
		C8.	The following ground-floor building elements may be located in the articulation zone: a. an entry feature or portico b. a balcony, deck, pergola, terrace or verandah c. a window box treatment d. a bay window or similar feature e. an awning or other feature over a window f. a sun shading feature g. an eave h. any other small scale building element that in the opinion of council provides visual interest to the elevation **Note:** The maximum total area of all building elements in the articulation zone, other than a building element specified in e), f) or g), does not comprise more than 25% of the area of the articulation zone.
		C9.	Minimum building setback for an awning or verandah is: a. to classified roads: 1.5m

Objective		Control	
			b. to local roads that intersect with classified roads: 1.5m for a distance of 100m from the intersection with the classified road c. to any signalised intersection: 1.5m for a distance of 100m from the signalised intersection

5.2.1.4 Landscaping and Private Open Space

Objective		Control	
O1.	To ensure new dwellings have functional and high-quality landscaping and open space.	**C1.**	New development must comply with the minimum private open space and landscaping provisions contained within **Section 3.7** (Landscaping and Biodiversity).
O2.	To ensure rooftop terraces do not result in excessive bulk and scale or adverse impacts to the visual and acoustic privacy of adjoining sites.	**C2.**	The maximum area of a rooftop terrace is 24m^2 and should not represent the principal private open space for a dwelling. The roof top terrace is to be enclosed by in-built planter boxes.
		C3.	The rooftop terrace must be oriented to minimise impacts on the visual and acoustic privacy of adjoining sites.
		C4.	Where part of a rooftop terrace is oriented to a side boundary, its perimeter must be bordered screening vegetation. The floor of the rooftop terrace area must be differentiated from the rest of the flat roof. The enclosure of the roof top terrace area with built-in planter boxes may be required.
		C5.	Roof terrace balustrades must not be transparent.
		C6.	The trafficable area of the roof top terrace and balustrade shall be setback at least 1.5m from the building edge.
		C7.	The roof top entry point should not be excessive in size and should only be used as access to the terrace area.
		C8.	Overlooking into the internal private and external open space of adjoining neighbours should be avoided.

5.2.1.5 Solar Access and Overshadowing

Objective		Control	
O1.	To ensure that sunlight access: • is provided to private open space and habitable rooms within the development; and • is not unreasonably diminished for neighbouring properties and the development site.	**C1.**	Dwellings within the development site and adjoining properties should receive a minimum of 2 hours direct sunlight in habitable living areas (family rooms, rumpus, lounge and kitchen areas) and in at least 50% of the primary private open space between 9am and 3pm in mid-winter. Council may grant consent to a development that does not comply with the 2 hours of solar access requirement. However, Council must not grant consent, unless the applicant has satisfactorily addressed the questions identified in the Land and Environment Court Sunlight Planning Principle. The Planning Principle is updated by Court decisions and is available to view on the Land and Environment Court's website (www.lawlink.nsw.gov.au/lec). For development adjoining a semi-detached dwelling, first floor additions may need to be setback in order to provide adequate solar access to the living areas within the adjoining dwellings and their primary open space areas.
		C2.	Consideration must be given to neighbouring properties' solar panels and the loss of sunlight to these panels as a result of any development proposal.

5.2.1.6 Parking and Access

Objective		Control	
O1.	To ensure that low-density residential development is consistent with Council's provisions related to parking, access, and active and sustainable transport.	**C1.**	Development must be consistent with the requirements in **Section 3.5** (Transport, Parking and Access).

5.2.1.7 Visual and Acoustic Privacy

Objective		Control	
O1.	To site and design development to ensure a reasonable level of acoustic and visual privacy for residents within a development	**C1.**	Habitable room windows above the ground floor, which face side or rear boundaries that adjoin a residential property, must provide:

Objective		Control	
	and between a development and adjoining sites.		a. offsetting of the edge of one window to the edge of the other window by a sufficient distance to limit views; or b. sill heights 1.5m above the floor level of that storey; or c. opaque glazing in any part of the window below 1.5m above floor level; or d. fixed external screens with 50% transparency or less.
O2.	To ensure attics do not result in excessive bulk or adverse impacts to the visual privacy of adjoining sites.	**C2.**	Balconies, terraces, and the like should be located to minimise overlooking of an adjoining property's open space or windows. Techniques such as recessing, screens or landscaping may be used to prevent direct views into habitable rooms or private open spaces.
		C3.	The form and placement of attic windows must respect the visual privacy of neighbouring properties and minimise overlooking.
		C4.	Access to attics must be provided by internal, not external, stairs.
		C5.	First floor rear balconies are only permitted adjacent to a bedroom and must be contained wholly above the building footprint of the ground floor.

5.2.1.8 Special Height Controls

Objective		Control	
Generals			
O1.	To encourage specific low density-built form outcomes in Special Areas.	**C1.**	Increased height and density in the form of terrace style housing is encouraged in the Special Height Areas H1 and H2 which covers parts of Botany, Mascot, Rosebery, and Eastlakes. Development in this area should include significant landscaping in the front setbacks.
		C2.	Height in the H2 Special Height Area is permitted and encouraged as 2 storeys with attic, with the maximum ridge height to be consistent with adjoining two (2) storey buildings.
		C3.	In the H3 Special Height Area, low density residential accommodation in the form of

Objective		Control	
			detached/attached dwellings is encouraged with a maximum height of 2 to 3 storeys (10 metres height limit) depending on the slope of the land with a FSR of 0.55:1 within Special Height Area H3. The bottom storey of the dwelling must only consist of garages or non-habitable rooms such as bathrooms, laundries, storage areas or the like (as defined by the BCA). **Note**: At any part of the perimeter of the building, the height is not to exceed 2 storeys unless one of the storeys being the basement or lowest level contains a non-habitable space not exceeding 40m² in area.



Figure 17: Special Area H1

Objective	Control



Figure 18: Special Area H2



Figure 19: Special Area H3

Objective	Control

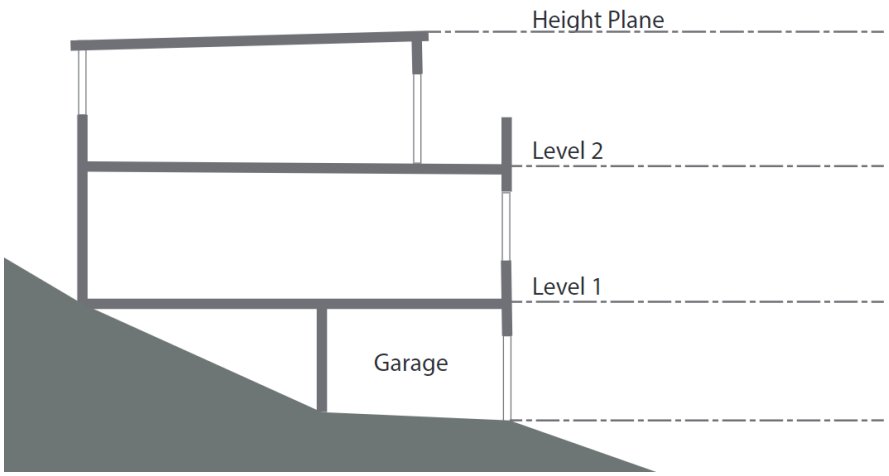


Figure 20: Height Plane

5.2.2 Additional Controls for Dual Occupancy and Semi-Detached Dwellings

Objective		Control	
O1.	To ensure new semi-detached and dual occupancy development responds to predominant streetscape qualities.	**C1.**	Alterations and additions to existing semi-detached dwellings must integrate with the existing and adjoining building and not compromise future development of the adjoining semi-detached dwelling.
O2.	To integrate new semi-detached development with the adjoining semi-detached dwellings and is viewed as a pair from the public domain.	**C2.**	The new dwellings that constitute the semi-detached dwelling are compatible with the existing in siting, scale, form, material, and colour when viewed from a road.
O3.	To ensure alterations or additions to semi-detached dwellings integrate with the other adjoining semi-detached dwelling and do not dominate the streetscape.	**C3.**	Alterations or additions above the ground storey to one of a pair of semi-detached dwellings must be set back beyond the apex or main ridge of the principal roof form of the building.
		C4.	Building setbacks to a side boundary less than the minimum are only permitted on lots with a width less than 12.5m.
O4.	To ensure dual occupancy development does not result in excessive bulk that detracts from the amenity of the streetscape.	**C5.**	Minimum lot width for dual occupancy dwellings must be 15m. **Note**: A variation to the minimum lot width may be supported where the development satisfies each of the following points: a. minimum setbacks requirements are achieved b. development complies with the maximum FSR and Height in accordance with the Bayside LEP 2021

Objective		Control	
			c. privacy is maintained between adjoining properties and overshadowing complies with the requirements set out in this DCP d. development does not contribute unreasonably to bulk and scale and is consistent within the neighbourhood and street character e. minimum landscaped area requirement is achieved
		C6.	A contemporary design of dual occupancy dwellings is encouraged and should take into consideration predominate architectural features, style and design of the neighbouring buildings, streetscape and local character.
		C7.	Two or three storey development is only permitted on the front of an allotment and may extend to a maximum of 70% of the depth of the site measured from the property boundary.



Figure 21: Minimum building setback to a primary road is the average of the dwellings on adjoining lots

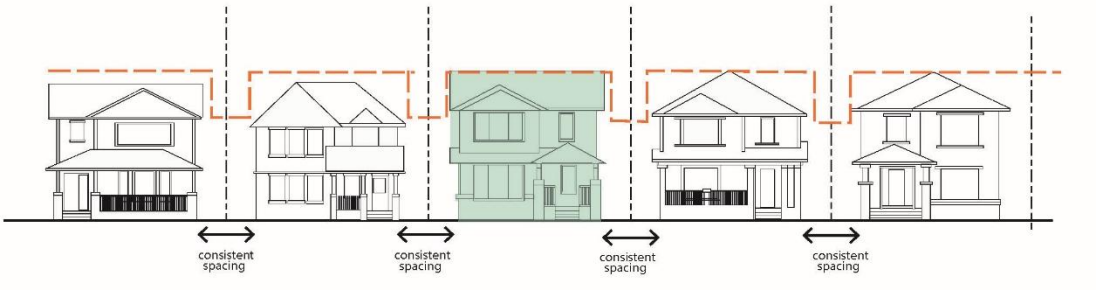


Figure 22: Building setbacks are compatible with streetscape rhythm

5.2.3 Medium density residential (attached dwellings, multi-dwelling housing)

5.2.3.1 Streetscape, Local Character, and Quality of Design

Objective		Control	
O1.	To create visual interest through building articulation and a variety of compatible materials, finishes and colouring.	**C1.**	The maximum length of building frontage along the street is 20m.
		C2.	New development is to incorporate architectural relief and modulation of facades to avoid a bulky appearance. Architectural elements will provide visual interest to the built form.
O2.	To provide legibility between the public domain, individual dwellings, and communal open space through landscaping.	**C3.**	The layout of the development must not result in a "gun-barrel" form (e.g. long perpendicular driveways flanked by dwellings).
O3.	To create visual interest through building articulation and a variety of compatible materials, finishes and colouring.	**C4.**	Where practical, each dwelling should be provided with an individual entrance from a public street or public place.
O4.	To incorporate sustainable materials and technologies into development.	**C5.**	Materials, colours, architectural details, and finishes are to be consistent with those that are identified in the relevant Precinct Character Statement. If not identified in the Precinct Character Statement natural colours and muted tones and finishes are to be used.
		C6.	Materials and design detailing will ensure long life and ease of maintenance. In particular: a. treated timber or metal hinged shutters such as plantation shutters b. glass balustrades c. sliding translucent screens to balconies d. adjustable horizontal louvers attached to pergolas e. operability and location of windows to allow ease of cleaning retractable blinds
		C7.	A Schedule of Finishes and a detailed Colour Scheme for the building facade must accompany all Development Applications involving a change to the colouring of areas visible from the public domain. The Schedule of Finishes shall consist of samples of materials and corresponding manufacturer's details and product codes. Applicants are to use illustrated elevations to document the location and composition of materials.
		C8.	Solar panels are to be integrated into the design of a building in terms of minimising visual intrusion and location on the roof.

Objective		Control	
		C9.	Face brickwork is to be used only where this is common in the immediate vicinity of the proposed development.
		C10.	No expansive use of white, light or primary colours which detract from the streetscape are permitted. Primary colours are only to be used for small design features and accents to the building.
		C11.	Buildings are to incorporate a higher proportion of masonry to glass.
		C12.	Each dwelling shall be designed to have an individual identity from the street.
		C13.	Entrances to individual dwellings are to be well-lit, provide shelter and a safe space to enter the building for residents and visitors. The front door is to be orientated to the street and have direct access to the street.
		C14.	Developments will demonstrate clear lines of transition between the public street, the shared communal open space, circulation space and the private open space of individual dwellings (i.e. landscaping, paving and fencing can used to define different areas within the development).
		C15.	Street numbering and mailboxes must be clearly visible from the primary street.

5.2.3.2 Built Form Controls

Objective		Control	
O1.	To ensure the lot size will facilitate development that can achieve the envisaged development outcomes for the local area and does not result in any adverse impacts to adjoining sites.	**C1.**	Minimum site frontage width is 18m. **Note:** site frontage width of less than 18 m is unlikely to be able to achieve the full extent of the permissible FSR under the Bayside LEP 2021.
O2.	To ensure roof form, pitch, materials, and colours are compatible with those prevailing in the surrounding area.	**C2.**	Where roof forms in a streetscape are predominantly pitched, roof pitches are to be between 22.5 degrees and 40 degrees.
O3.	To ensure attics do not result in excessive bulk or adverse impacts to the visual privacy of adjoining sites.	**C3.**	Flat or skillion roof forms may be located to the rear of a development site provided it is not a corner location and does not detract from the streetscape.
		C4.	Pitched roofs are encouraged to have a minimum eave overhang of 450mm

Objective		Control	
			(excluding gutters) in circumstances where that roof form is the predominant form for the character.
		C5.	An attic may be used as a habitable room provided that: a. it is part of the dwelling immediately below b. it is incapable of being used as a separate dwelling c. it is contained wholly within a roof space above the ceiling line of the storey immediately below, except for minor elements such as dormer windows d. windows are limited to small dormer windows
		C6.	The form and placement of attic windows must respect the visual privacy of neighbouring properties and minimise overlooking.

5.2.3.3 Setbacks

Objective		Control	
O1.	To ensure building setbacks are compatible with the envisaged streetscape character and provide a reasonable level of amenity based on the adjacent road environment.	**C1.**	Minimum building setback to a road is either: a. compatible with the predominant existing setback b. where there is no predominant existing setback: 6m
O2.	To ensure an appropriate level of visual and acoustic privacy between a development and its adjoining sites, as well as providing sufficient space for access, landscaping and private open space.	**C2.**	An articulation zone containing porches, bay windows and / or balconies may extend a maximum of 1.2m forward of the of building line for a maximum of one third of the area of the entire front elevation.
O3.	To positively contribute to the streetscape through building articulation and landscaping that encourages engagement between the development and public domain.	**C3.**	Minimum building setback to a secondary road is 1.5m.
		C4.	Minimum building setback to a side boundary is: For the front two- thirds of site: a. 0.9m (ground floor) and 1.5m first floor and above. b. For the rear third of the site: 4m
		C5.	Minimum building setbacks to a rear boundary are: a. For a ground storey: 4m

Objective		Control	
			b. For above the ground storey: 6m
		C6.	Setbacks are to be deep soil zones.
		C7.	Setbacks are to maximise the retention of existing trees and their root systems and may need to be variable to achieve this (includes trees on adjoining properties).
		C8.	Where land dedications are required resulting in a new boundary line, all setbacks will be provided from this new boundary line, including basement car parking setbacks.
		C9.	All garages are to be setback a minimum of 6m from the front boundary if the garage fronts the street.
		C10.	Two or three storey development is only permitted on the front of an allotment and may extend to a maximum of 70% of the depth of the site measured from the property boundary.

5.2.3.4 Landscaping and Private Open Space

Objective		Control	
O1.	To ensure new dwellings have functional and high-quality landscaping and open space.	**C1.**	New development must comply with the minimum private open space and landscaping provisions contained within **Section 3.7** (Landscaping and Biodiversity).
		C2.	The maximum area of a rooftop terrace is 24m^2.
		C3.	The rooftop terrace must be oriented to minimise impacts on the visual and acoustic privacy of adjoining sites.
		C4.	Where part of a rooftop terrace is oriented to a side boundary, its perimeter must be bordered screening vegetation.
		C5.	Roof terrace balustrades must not be transparent.
		C6.	The trafficable area of the roof top terrace and balustrade shall be setback at least 1.5m from the building edge.
		C7.	The roof top entry point should not be excessive in size and should only be used as access to the terrace area.

Objective		Control	
		C8.	Overlooking into the internal private and external open space of adjoining neighbours should be avoided.
		C9.	Landscaping is to be provided along boundaries and between driveways and boundaries.

5.2.3.5 Solar Access and Overshadowing

Objective		Control	
O1.	To ensure that sunlight access: • is provided to private open space and habitable rooms within the development; and • is not unreasonably diminished for neighbouring properties and the development site.	**C1.**	Dwellings within the development site and adjoining properties should receive a minimum of 2 hours direct sunlight in habitable living areas (family rooms, rumpus, lounge and kitchen areas) and in at least 50% of the primary private open space between 9am and 3pm in mid-winter.
		C2.	Council may grant consent to a development that does not comply with the 2 hours of solar access requirement. However, Council must not grant consent, unless the applicant has satisfactorily addressed the questions identified in the Land and Environment Court Sunlight Planning Principle. The Planning Principle is updated by Court decisions and is available to view on the Land and Environment Court's website (www.lawlink.nsw.gov.au/lec). Where existing adjoining properties currently receive less sunlight than these standards, sunlight must not be reduced by more than 20%.
		C3.	For development adjoining a semi-detached dwelling, first floor additions may need to be setback in order to provide adequate solar access to the living areas within the adjoining dwellings and their primary open space areas.

5.2.3.6 Parking and Access

Objective		Control	
O1.	To ensure that medium-density residential development is consistent with Council's provisions related to parking, access and active and sustainable transport.	**C1.**	Development must be consistent with the requirements in **Section 3.5** (Transport, Parking and Access).

5.2.3.7 Visual and Acoustic Privacy

Objective		Control	
O1.	To site and design development to ensure a reasonable level of acoustic and visual privacy for residents within a development and between a development and adjoining sites.	**C1.**	Habitable room windows above the ground floor, which face side or rear boundaries that adjoin a residential property, must provide: a. offsetting of the edge of one window to the edge of the other window by a sufficient distance to reduce overlooking; or b. sill heights 1.5m above the floor level of that storey; or c. opaque glazing in any part of the window below 1.5m above floor level; or d. fixed external screens with 50% transparency or less.
O2.	To ensure attics do not result in excessive bulk or adverse impacts to the visual privacy of adjoining sites.	**C2.**	Balconies, terraces and the like should be located to minimise overlooking of an adjoining property's open space or windows, and are not encouraged along side boundaries. Techniques such as recessing, screens or landscaping may be used to prevent direct views into habitable rooms or private open spaces.
		C3.	The form and placement of attic windows must respect the visual privacy of neighbouring properties and minimise overlooking.

5.2.4 High density residential

The controls in this section apply to high density development, including residential apartment buildings. Where the controls in this section are inconsistent with the principles in SEPP 65 and the Apartment Design Guide, the Apartment Design Guide prevails.

5.2.4.1 Streetscape, Local Character, and Quality of Design

Objective		Control	
O1.	To create high-quality and functional architecture that contributes to local character and assists with legibility.	**C1.**	Development is to be designed to reflect the relevant local character in Chapter 7 and reinforce the architectural features and identity which contribute to the desired future character of the area.
O2.	To create visual interest through building articulation and a variety of compatible materials, finishes and colouring.	**C2.**	Where involving development that is three or more storeys and has four or more dwellings, development considers the relevant objectives and design criteria of the Apartment Design Guide. **Note**: this DCP requires the preparation of a context and site analysis to support a Development Application. **Note**: Local character is articulated for specific localities in **Chapter 7 – Specific Places**
O3.	To provide for high quality high density residential development that: a. responds appropriately to its site and context b. contributes positively to local character and streetscape c. provides a high level of amenity for residents and adjoining properties	**C3.**	Important corners are expressed by giving visual prominence to parts of the façade through a change in building articulation, material, colour, roof expression or increased height.
O4.	To positively contribute to the streetscape through unobstructed alignment of built form to the public domain.	**C4.**	The building line of a street wall building must be parallel with the street boundary alignment.
O5.	To provide differentiation in built form where development occurs over a street block.	**C5.**	Buildings provide opportunities for people to engage with the public domain through well designed, legible elements such as: a. entry lobbies b. entry porches c. loggias
O6.	To conceal utilities and building bulk from residents and the public domain.	**C6.**	Elevations are to be articulated into smaller elements in both the horizontal and vertical planes that provide visual detail and interest within a cohesive overall design including through the use of: a. building entries b. balconies and other private outdoor recreation areas c. windows d. doors e. eaves, overhangs, and other sun shading devices f. blade walls and fins
		C7.	Large expanses of blank walls are avoided through the use of architectural design features.

Objective		Control	
		C8.	Where in the same street block, buildings should vary in size, height, form, and architectural expression so that the street block presents as a group of buildings rather than a singular architectural design or building.
		C9.	Design incorporates a range of measures to provide for a high level of residential amenity such as: a. sun shading devices b. noise barriers c. privacy screens d. careful location of balconies, terraces and loggias
		C10.	Plumbing services/fire boosters/substations are to be integrated and within building footprint.
		C11.	All overhead wires (including electrical and telecommunication services) fronting the site are to be relocated underground as part of the development. The redundant power poles are to be removed and replaced with underground supplied street lighting columns. All works shall be carried out at the applicant's expense.

5.2.4.2 Built Form Controls

Objective		Control	
O1.	To ensure roof form, pitch, materials, and colours are compatible with those prevailing in the surrounding area.	**C1.**	Where in the same street block, buildings vary in size, height, form, and architectural expression so that the street block presents as a group of buildings rather than a singular architectural design or building.
O2.	Dwellings provided at the ground storey have a high level of engagement with the adjoining public domain.	**C2.**	Western elevations incorporate design measures that reduce solar gain from direct summer afternoon sunlight such as: a. external, fixed devices such as balconies, eaves, or overhangs b. external movable devices such as screens c. glazing or transparent glass that reduces the amount of heat entering a building (mirrored glass is not permitted, and coloured glass is only permitted where it is transparent)
		C3.	Building utilities such as clothes drying areas and air conditioning units are screened from view from the public domain.

Objective		Control	
			Air conditioning units must not reduce the minimum private open space area of a dwelling.
		C4.	The floor level of the upper most storey must be at least 3.5m below the maximum permitted height to achieve a variety of roof forms.
		C5.	Where provided on a roof, plant rooms, lift overruns and mechanical ventilation are to be integrated into the building design and are not visible from the public domain public place. **Note:** It is Council's preference that these items be located in the basement of the building.
		C6.	Upper storeys are to be articulated through measures such as differentiated roof forms, maisonettes or mezzanine penthouses.
		C7.	Ground floor dwellings fronting a street are to have individual street entries.
		C8.	Dwellings provided at the ground storey are encouraged to be designed in a form similar to 2 storey terrace houses, including framing fin walls to delineate individual dwellings.
		C9.	The maximum difference in height between the public and private domain at the lot boundary is 1m.
		C10.	Where the difference in height between the public and private domain at the lot boundary is greater than 1m, a detailed section is to be provided to demonstrate that an appropriate relationship is provided between ground floor dwellings and the adjacent street. Casual surveillance of the street must be achieved and the privacy of the unit maintained.
		C11.	Ground floor units must not be located below the level of the adjacent street.
		C12.	Elements forward of the main building line such as private open space and fencing must be designed to facilitate opportunities for passive casual surveillance of the adjoining public domain.
		C13.	Existing residential flat buildings with no existing balcony enclosures are not permitted to enclose any balcony. Applications for balcony enclosures may only be considered when the enclosures are:

Objective		Control	
			a. integrated with a design for the entire building; and b. improve internal amenity through environmental control.
		C14.	Large expanses of blank walls are to be avoided through the use of architectural design features, modelling and fenestration.

5.2.4.3 Setbacks

Objective		Control	
O1.	To ensure building setbacks are compatible with the envisaged streetscape character and provide a reasonable level of amenity based on the adjacent road environment.	**C1.**	Building setback to a road is compatible with: a. the predominant front setback b. the setback defined in **Chapter 7** – Location Specific Controls
O2.	To ensure an appropriate level of visual and acoustic privacy between a development and its adjoining sites as well as providing sufficient space for access, landscaping, and private open space.	**C2.**	Development setbacks to the side and rear are to be consistent with the Apartment Design Guide. Where the ADG doesn't apply: a. Minimum building setback to a side boundary: i. up to four storeys (approximately 12m): 3m between habitable rooms/balconies ii. four storeys (approximately 12m) and above: 4.5m b. Minimum building setback to a rear boundary shall be, whichever is greater: i. 6m ii. 15% of the length of the site
		C3.	Minimum building setback for an awning or verandah must comply with the following: a. to classified roads: 1.5m b. to local roads that intersect with classified roads: 1.5m for a distance of 100m from the intersection with the classified road c. to any signalised intersection: 1.5m for a distance of up to 100m from the signalised intersection
		C4.	Where land dedications are required resulting in a new lot line, all setbacks are to

Objective		Control	
			be provided from this new boundary line, including basement car parking setbacks.
		C5.	Minimum building setbacks to all lot boundaries are to be clear of intrusions, including all or part of: a. buildings b. structures c. basements d. vehicle access or parking e. infiltration systems

5.2.4.4 Landscaping and Private Open Space

Objective		Control	
O1.	To ensure new dwellings have functional and high-quality landscaping and open space.	**C1.**	New development must comply with the minimum private open space and landscaping provisions contained within **Section 3.7** (Landscaping and Biodiversity).
O2.	To ensure rooftop terraces do not result in excessive bulk and scale or adverse impacts to the visual and acoustic privacy of adjoining sites.	**C2.**	New development must comply with the landscaping, private, communal open space and deep soil criteria within the Apartment Design Guide.
		C3.	Any rooftop terrace must be oriented to minimise impacts on the visual and acoustic privacy of adjoining sites.
		C4.	Perimeters of roof tops terraces bordering side or rear boundaries must be screened to minimise potential privacy issues. The use of planters within screens is encouraged. the location of screens must not contribute to the perceived bulk of the building form.
		C5.	The trafficable area of the roof top terrace and balustrade shall be setback at least 1.5m from the building edge.
		C6.	The roof top entry point and associate roof form must not contribute to the perceived bulk of the building.

5.2.4.5 Solar Access and Overshadowing

Objective		Control	
O1.	To ensure that sunlight access: a. is provided to private open space and habitable rooms within the development; and b. is not unreasonably diminished for neighbouring properties and the development site.	**C1.**	Adjoining properties that the ADG does not apply to should receive a minimum of 2 hours direct sunlight in habitable living areas (family rooms, rumpus, lounge, and kitchen areas) and at least 50% of the primary private open space between 9am and 3pm in mid-winter.
		C2.	Council may grant consent to a development that does not comply with the 2 hours of solar access requirement. However, Council must not grant consent, unless the applicant has satisfactorily addressed the questions identified in the Land and Environment Court Sunlight Planning Principle. The Planning Principle is updated by Court decisions and is available to view on the Land and Environment Court's website (www.lawlink.nsw.gov.au/lec).

5.2.4.6 Parking, Access and Circulation

Objective		Control	
O1.	To provide access and circulation areas that are comfortable, of a high amenity and accessible for all.	**C1.**	Development must be consistent with the requirements in **Section 3.5** (Transport, Parking and Access).
O2.	To ensure that medium-density residential development is consistent with Council's provisions related to parking, access and active and sustainable transport.	**C2.**	Apartment design complies with the provisions of chapter 4F Common circulation and spaces of the Apartment Design Guide.
		C3.	All common corridors have a minimum width of 2m to enable bulky goods (white goods, furniture etc) to be easily transported through the building.
		C4.	All common corridors are to be provided with natural light and ventilation.
		C5.	The minimum dimensions of lift cars are to achieve compliance with relevant Australian Standards.
		C6.	Where provided, lifts are to be accessible from all levels of the building, including all basement levels.
		C7.	Level access to the lift from all basement levels is provided.
		C8.	Each dwelling on a level above the sixth storey has access to two lifts.

Objective		Control	
		C9.	In buildings of more than four storeys served by elevators, ensure that alternative access to another elevator is available in the event that any elevator is out-of-service due to breakdown or routine servicing.
		C10.	All applications are to include a statement on how the development will comply with the provisions of the Disability Discrimination Act and comply with Part 4.10 – Universal, Accessible and Adaptable Design.

5.2.4.7 Visual and Acoustic Privacy

Objective		Control	
O1.	To site and design development to ensure a reasonable level of acoustic and visual privacy for residents within a development and between a development and adjoining sites.	**C1.**	Habitable room windows above the ground floor, which face side or rear boundaries that adjoin a residential property, must provide: a. offsetting of the edge of one window to the edge of the other window by a sufficient distance to limit views; or b. sill heights 1.5m above the floor level of that storey; or c. opaque glazing in any part of the window below 1.5m above floor level; or d. fixed external screens with 50% transparency or less.
O2.	To ensure attics do not result in excessive bulk or adverse impacts to the visual privacy of adjoining sites.	**C2.**	Balconies, terraces and the like should be located to minimise overlooking of an adjoining property's open space or windows. Techniques such as recessing, screens or landscaping may be used to prevent direct views into habitable rooms or private open spaces.
		C3.	The form and placement of attic windows must respect the visual privacy of neighbouring properties and minimise overlooking.
		C4.	Overlooking into the internal private and external open space of adjoining neighbours must be avoided.
		C5.	Rooms with snorkel windows are discouraged.

5.2.4.8 Materials and Finishes

Objective		Control	
O1.	To create visual interest through building articulation and a variety of compatible materials, finishes and colouring.	**C1.**	The building base or key elements incorporate visually heavier materials such as brick, stone, and concrete.
O2.	To incorporate sustainable materials and technologies into development.	**C2.**	Lighter materials such as glazing, cladding and lightly coloured rendered surfaces are used to reduce perceived bulk and add relief to the façade.
O3.	To ensure development is resilient to graffiti, low maintenance and durable.	**C3.**	The colour scheme for external elevations comprises a compatible selection of lighter, softer, and more visually recessive colours. **Note:** Lighter, softer, and more visually recessive colours are those such as whites, creams, greys and browns.
O4.	Materials and finishes: a. complement the overall building composition and emphasise the scale, proportion and rhythm of elevations b. are low maintenance c. are energy efficient d. maximise the life of buildings and reduce energy costs in demolition, reconstruction and recycling	**C4.**	A Schedule of Finishes and a detailed colour scheme for the building facade will accompany all Development Applications involving building works (refer to Council's Development Application Lodgement Checklist). The Schedule of Finishes will consist of: a. samples of materials with manufacturer's details and product code b. detailed colour scheme to be shown in the form of illustrated building elevations which is cross-referenced with a colour sample chart showing manufacturer's details and product code
		C5.	A 1:20 or 1:50 detailed construction section is to be provided detailing at a minimum the materials and finishes to be used, as well as shading screens or noise attenuation measures.
		C6.	Solar panels are integrated into the design of a building.
		C7.	Materials and elements on the exterior of the building are durable, low maintenance and graffiti resistant such as combinations of concrete, brick, timber, and glass.

5.2.4.9 Entries

Objective		Control	
O1.	To ensure building entries are easily identifiable, accessible, and positively contribute to the streetscape.	**C1.**	The entry is to be designed so that it is a clearly identifiable element of the building in the street.
		C2.	Entrances must provide shelter and be well-lit and safe spaces to enter the building, meet and collect mail.
		C3.	At least one main entry with convenient universal, barrier-free access must be provided in all new developments.
		C4.	Where a ramp access is provided, it is not visually dominant from the adjoining public domain.
		C5.	Provide separate entries from the street for: a. pedestrians and cars b. residential and commercial users
		C6.	Design entries and associated circulation space of an adequate size to allow movement of furniture between public and private spaces.
		C7.	Pedestrian entries are to be located on primary road frontages.
		C8.	Building entries providing access to more than one dwelling maximise visual connections between the private and public domain through layout and materials such as large expanses of transparent glass.
		C9.	Street numbering and mailboxes must be clearly visible from the primary street.
		C10.	Devices such as open fencing may be necessary along the front boundary to ensure visibility and security of the entry. **Note:** Entrances to dwellings are to provide shelter, and well-lit safe spaces to enter the building for residents and visitors.
		C11.	Pedestrian lifts to meet accessibility requirements are not recommended.

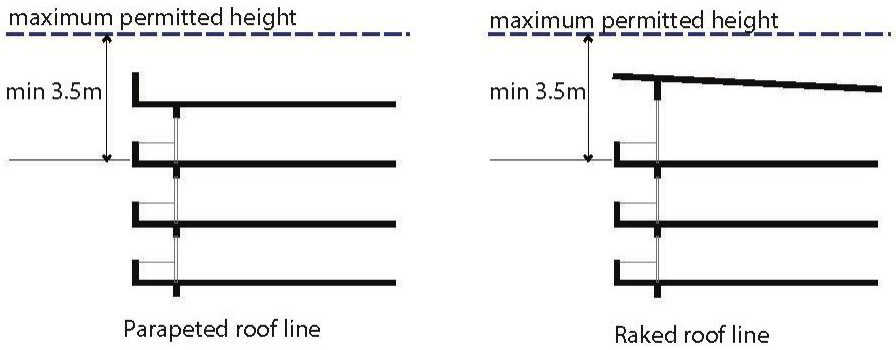


Figure 23: Example roof line types

5.2.5 Shop-top housing and mixed use

Objective		Control	
O1.	Development at ground-floor is to activate the street and provide opportunity for passive surveillance.	**C1.**	Development is to comply with Bayside LEP 2021 controls related to Active Street Frontages.
O2.	Development demonstrates that non-residential components on the ground floor will not have unacceptable impacts on the liveability, amenity, or efficiency of above-ground residential uses.		Development includes display windows with clear glazing to ground floor retail and commercial premises with a maximum window sill height of 700mm. Glazing is not to be frosted or otherwise obscured at eye level; between the heights of 0.7-2.1m.
O3.	Residential development above the ground-floor is to be of an appropriate design quality. consistent with the controls for high-density residential development in the Apartment Design Guide.	**C2.**	All ground floor lobbies are to have direct visual connection with the street, with clear sight lines.
		C3.	Development siting and design provides appropriate consideration of: a. access and parking b. pedestrian access and circulation, including any lifts or stairwells c. refuse storage and disposal d. noise and vibration e. odour, in particular from flues and other devices used to disperse emissions from food preparation facilities f. general air quality
		C4.	Residential development above the ground-floor is to comply with the controls for high-density residential development in the Apartment Design Guide and Section 5.2.4 of the DCP.
		C5.	All overhead wires (including electrical and telecommunication services) fronting the site are to be relocated underground as part

Objective		Control	
			of the development. The redundant power poles are to be removed and replaced with underground supplied street lighting columns. All works shall be carried out at the applicant's expense.
		C6.	Mixed use buildings must have appropriate floor to floor and floor to ceiling heights for ground and level 1 to maintain flexibility for future use and adaptiveness. The following floor to ceiling heights must be achieved: a. Ground floor and first floor – 3.3m b. Residential floors above 2.7m

5.2.6 Group Homes and Respite Day Care Centres

Objective		Control	
Site requirements and building setbacks			
O1.	Design of group homes is to be consistent with the proposed dwelling type characteristics (e.g. dwelling house, multi-dwelling housing) and desired future local character of the area.	**C1.**	Development for the purpose of a group home may only be carried out on a site that— a. has an area of at least 450m^2, excluding the area of the access laneway if it is a battle-axe lot, and b. has a boundary with, or lawful access to, a public road, and c. if it is not a battle-axe lot, has a boundary with a primary road of at least 12m, and d. if it is a battle-axe lot, has an access laneway of at least 3m in width, and e. has at least one area on the site that measures at least 12m by 12m, excluding the access laneway if it is a battle-axe lot.
O2.	Building setbacks and separation distances: a. are scaled to support the desired future character with appropriate massing and spaces between buildings b. assist in providing residential amenity including visual and acoustic privacy, natural ventilation, sunlight and daylight access and outlook c. achieve reasonable levels of external and internal visual privacy, including allowing residents within an apartment development and on adjacent properties to use their private spaces without being overlooked d. provide suitable areas for communal open spaces, deep soil zones and landscaping	**C2.**	Where the application proposes the conversion of an existing dwelling into a group home, the design of the group home must comply with the relevant provisions under **Section 5.2.1 Low-density residential (dwellings, dual occupancy, semi-detached dwellings).** This control is relevant for all different housing typologies identified in this DCP.
		C3.	Building setback to a road is compatible with: a. the predominant front setback b. the setback defined in **Chapter 7** – Specific Places

Objective		Control	
		C4.	A group home must not be erected on a lot if the size of the lot is less than the minimum lot size for the erection of a dwelling house under an environmental planning instrument applying to the lot.
		C5.	The group home and all ancillary structures must not cover more than 70% of the site area. For the purposes of calculating the site coverage in subsection (1), the area of the following is not included— a. an access ramp, b. part of an awning, blind or canopy outside the outer wall of a building, c. a balcony, deck, patio, pergola, terrace or verandah attached to the group home and not enclosed by a wall higher than 1.4m above the floor level, d. an eave, e. a driveway, f. a fence or screen, g. a pathway or paving, h. a rainwater tank attached to the group home, i. a swimming pool or spa pool.
		C6.	A group home and all ancillary structures on a site must have a setback from the side boundary of at least the following— a. in relation to a group home with a building height of up to 3.8m—0.9m, b. in relation to a group home with a building height greater than 3.8m—0.9m plus 25% of the additional building height above 3.8m.
		C7.	A group home and all ancillary structures on a site must have a setback from the rear boundary of at least the following— a. in relation to a group home or an ancillary structure with a building height of up to 3.8m—0.9m, b. in relation to a group home or an ancillary structure with a building height greater than 3.8m—3m plus an amount that is 3 times the additional building height above 3.8m, up to a maximum setback of 8m.

Objective		Control	
		C8.	The distance between buildings that are used for the purposes of group homes on a site must be at least 1.8m.
Detailed design			
O3.	Detailed design: a. positively contributes to and enhances local character and streetscape b. engages with adjoining public domain c. reduces the appearance of building bulk and scale, and provides visual interest d. provides for a high level of residential amenity e. provides for a legible built form f. improves environmental performance	**C9.**	Development is to be designed to reflect the relevant local character in Chapter 7 and reinforce the architectural features and identity which contribute to the desired future character of the area.
		C10.	A group home, other than a group home on a battle-axe lot, must have— a. a front door and a window to a habitable room in a building wall that faces, and is visible from, any primary road, and b. a window to a habitable room in a building wall that faces, and is visible from, any parallel road, and c. a window, with an area of at least 1m2, to a habitable room in a building wall that faces, and is visible from, any secondary road.
O4.	Roof design: a. is compatible with the exiting or preferred future character of the streetscape b. is incorporated as an integral part of the overall building design c. provides visual interest d. contributes to the environmental performance of the building	**C11.**	Where provided on a roof, plant rooms, lift overruns and mechanical ventilation are integrated into the building design and are not visible from the public domain public place. **Note:** It is council's policy preference that these items be located in the basement of building.
Materials and finishes			
		C12.	Solar panels are to be integrated into the design of a building.
		C13.	Materials and elements on the exterior of the building are to be durable, low maintenance and graffiti resistant such as combinations of concrete, brick, timber and glass.
		C14.	The colour scheme for external elevations is comprised of a compatible selection of lighter, softer and more visually recessive colours. **Note:** Lighter, softer and more visually recessive colours are those such as whites, creams, greys and browns.
		C15.	A Schedule of Finishes and a detailed colour scheme for the building facade will

Objective		Control	
			accompany all Development Applications involving building works (refer to Council's Development Application Guide). The Schedule of Finishes will consist of: a. samples of materials with manufacturer's details and product code b. detailed colour scheme to be shown in the form of illustrated building elevations which is cross-referenced with a colour sample chart showing manufacturer's details and product code
Building Entries			
O5.	Building entries are: a. easily legible for residents and visitors b. provide safe and secure access c. contribute positively to the streetscape and building design	**C16.**	The entry is to be designed so that it is a clearly identifiable element of the building in the street.
		C17.	At least one main entry with convenient universal, barrier-free access must be provided in all new development.
		C18.	Where a ramp access is provided, it is not visually dominant from the adjoining public domain.
		C19.	Pedestrian entries are located on primary road frontages.
		C20.	Entrances must provide shelter and be well-lit and safe spaces to enter the building, meet and collect mail.
		C21.	Street numbering and mailboxes must be clearly visible from the primary street.
		C22.	Devices such as open fencing may be necessary along the front boundary to ensure visibility and security of the entry. **Note:** Entrances to dwellings are to provide shelter, and well-lit safe spaces to enter the building for residents and visitors.
Pedestrian access and circulation			
O6.	Access and circulation provide easy, comfortable and high amenity access for all, including people with prams and people that use wheelchairs or have walking difficulties or sight, hearing or intellectual impairment.	**C23.**	All common corridors have a minimum width of 2m to enable bulky goods (white goods, furniture etc) to be easily transported through the building.
		C24.	All common corridors are to be provided with natural light and ventilation.
		C25.	The minimum dimensions of lift cars are to achieve compliance with relevant Australian Standards.

Objective		Control	
		C26.	All applications are to include a statement on how the development will comply with the provisions of the Disability Discrimination Act and comply with Part 4.10 – Universal, Accessible and Adaptable Design.
		C27.	Ramps have gradients not exceeding 1 in 14, and have an even, non-slip surface.
		C28.	In buildings of more than four storeys served by elevators, ensure that alternative access to another elevator is available in the event that any elevator is out-of-service due to breakdown or routine servicing.
Landscaped Area, Private Open Space and Car Parking			
O6.	To ensure group homes have sufficient landscaped area, private open space and car parking to meet the functional and amenity needs of the residents.	**C29.**	Minimum landscaping requirements for a group home must comply with the following: a. At least 20% of the site area on which the erection of, or alterations or additions to, a group home or an ancillary structure is carried out must be a landscaped area. b. At least 50% of the landscaped area must be located behind the building line to the primary road boundary. c. The minimum dimensions of the landscaped area must be more than 2.5m.
		C30.	A site on which a group home is erected must have more than 24m^2 of principal private open space that— a. has an area at ground level (existing) directly accessible from, and adjacent to, a habitable room, other than a bedroom, and b. is at least 4m wide, and c. has a gradient no steeper than 1:50.
		C31.	Car parking requirements for group homes: a. At least 2 off-street car parking spaces must be provided on the site on which a group home is erected. b. At least 2 off-street car parking spaces must be retained on a site on which alterations or additions to an existing off-street car parking space are carried out. c. A car parking space under this section may be an open hard stand space or a carport or garage, whether attached or detached from the group home.

Objective		Control	
			d. The design of any garage, car port or hardstand must meet the requirements of **Section 5.2.1 Parking and Access** requirements.

5.2.7 Boarding houses and co-living (including student accommodation)

Development for boarding houses and co-living are also be subject to State Environmental Planning Policy (Housing) 2021 (the Housing SEPP). Where any inconsistency occurs between the SEPP and the DCP, the SEPP provisions prevail.

Note: under the Housing SEPP, student accommodation is treated as a subset of 'co-living'.

5.2.7.1 General

Objective		Control	
O1.	To ensure boarding houses and co-living premises have convenient walking access to public transport.	**C1.**	Within the R2 Low Density Residential area, boarding houses are only located within either: a. 400m of a bus stop b. 400m of a light rail station c. 800m of a railway station or ferry terminal **Note:** Refer to the definition of "accessible area" in State Environmental Planning Policy (Housing) 2021.
O2.	Development: a. promotes the efficient use of land b. encourages the amalgamation of land parcels into larger development sites for high density developments c. ensures that lot sizes and dimensions are able to accommodate development consistent with the relevant development controls d. ensures surrounding sites can be economically developed	**C2.**	A minimum lot width of 24 metres to any street frontage is required for Class 3 boarding house developments and co-living developments.
O3.	To provide an acceptable level of internal amenity for residents.	**C3.**	Resident numbers should not exceed: a. 1 lodger per room with a GFA less than 16m² b. 2 lodgers per room with a GFA greater than 16m² **Note:** GFA for this control excludes any area used for a private bathroom, kitchen or circulation.
O4.	To ensure the intended use of a boarding house is not compromised.	**C4.**	Strata subdivision or community title subdivision is not permitted.
O5.	To ensure boarding houses are compatible with the envisaged character of the local area.	**C5.**	Development must ensure that the proposed FSR, height, setbacks, detailed design and other elements are compatible with predominant scale of development in the local area.
O6.	To site and design on-site shared areas to ensure an acceptable level of visual and acoustic privacy for residents and residents of adjoining sites.		

Objective		Control	
O7.	To ensure habitable areas provide an acceptable level of amenity and provide residents with comfortable living conditions.	**C6.**	Communal open space is located away from habitable rooms of dwellings on adjoining properties.
		C7.	Private open space and balconies incorporate screening devices to avoid direct overlooking into habitable rooms of dwellings on adjoining properties.
O8.	To mitigate impacts from development that relate to traffic, noise, organised events, use of on-site open space areas and other matters which relate to the surrounding areas existing amenity.	**C8.**	Communal areas and bedroom windows are to be located away from the main living area or bedroom windows of any adjacent buildings.
		C9.	Screen fencing, plantings, and acoustic barriers are to be incorporated in appropriate locations.
		C10.	The main entry point of the boarding house is located at the front of the site away from side boundary areas near adjoining properties.
		C11.	Sources of noise, such as kitchens, communal rooms and parking areas must be sited and designed to minimise the noise impact on adjoining properties.
		C12.	Where required Development Applications for boarding houses and co-living are to be accompanied by a noise assessment prepared by a qualified acoustic consultant, addressing the requirements of the SEPP (Transport and Infrastructure) 2021 and **Section 3.14 –** Noise and Vibration.
		C13.	Bedrooms are to be located so that they are separate from significant noise sources. Bedrooms are to incorporate adequate sound insulation to provide reasonable amenity between bedrooms and external noise sources.
		C14.	Double glazed windows are to be incorporated where noise transmission affects neighbouring buildings.
		C15.	Each bedroom must have access to natural light and ventilation, from a window or door with a minimum aggregate area of 10% of the floor area of the room. **Note**: Skylights and highlights are not to be the sole source of natural light.
		C16.	The minimum ceiling height of all habitable rooms is 2.7m.
		C17.	Triple bunks are not permitted.

Objective		Control	
		C18.	Ceiling fans are to be provided in all rooms.
		C19.	A Development Application for a boarding house or co-living is to be supported by a written Plan of Management (POM) that describes how the ongoing operation of the boarding house/co-living development will be managed to reduce its impact upon the amenity of surrounding properties.
		C20.	A Development Application for a boarding house, which has a capacity of greater than 19 residents is to be supported by a Social Impact Statement (SIS). A SIS must be undertaken by an appropriately trained and qualified person using rigorous social science methodologies with a high degree of public involvement.

5.2.7.2 Solar Access and Overshadowing

Objective		Control	
O1.	Development provides adequate solar access to: a. habitable rooms within the development and in adjoining developments b. private open space within the development c. private open space of adjoining dwellings d. solar collectors of adjoining development e. public open space.	**C1.**	Development is to be designed and sited to provide a minimum of 3 hours sunlight between the hours of 9.00am and 3.00pm on 21 June to: a. 70% of habitable rooms within the development b. all habitable rooms in adjoining residential developments c. private open space within the development d. private open space of adjoining dwellings.
		C2.	Where the level of solar access to adjoining properties is already below the requirement above, the solar access will not be further reduced.
		C3.	Developments are to be designed to enhance solar access by incorporating the following principles: a. living areas of dwellings such as kitchens and family rooms are to be located on the northern side of dwellings and service areas such as laundries and bathrooms to the south or west b. buildings will be sited to reduce overshadowing on adjoining properties by increasing setbacks, staggering of design, variations in

Objective		Control	
			roof form and/or reducing building bulk and height c. building setbacks may need to be increased to maximise solar access and to minimise overshadowing from adjoining buildings d. building heights may also need to be stepped to maximise solar access e. landscaping is to provide shade in summer without reducing solar access in winter f. all rooms are to contain an external window to provide direct light and ventilation. Exceptions may be considered for non-habitable rooms where this cannot be achieved practically, and mechanical ventilation can be provided g. building elements such as operable louvers and screens, pergolas, blinds etc are to be used to modify environmental conditions where required, such as maximising solar access in winter and provide shading in summer h. higher window heads enhance sunlight penetration into dwellings.

5.2.7.3 Management

Objective		Control	
O1.	To ensure boarding houses provide suitable facilities and accommodation for on-site management.	**C1.**	Development shall provide boarding rooms or on-site dwellings, to accommodate boarding house managers, based on the following rates of provision: a. 20 – 39 lodgers require 1 boarding room or on-site dwelling b. 40 – 79 lodgers require 2 boarding room or on-site dwelling c. 80 lodgers require 3 boarding rooms or on-site dwellings
		C2.	Boarding rooms or on-site dwellings, provided for management, shall achieve a minimum area of 16m².
		C3.	Boarding rooms or on-site dwellings, provided for management, shall include private open space which achieves a

Objective		Control	
			minimum area of 8m² and a minimum dimension of 2.5m.

5.2.7.4 Function, efficiency, and safety

Objective		Control	
O1.	To ensure development is functional, efficient, and safe.	**C1.**	Communal spaces, including laundry, bathroom, kitchen and living areas are to be located in safe and accessible locations.
O2.	To provide facilities for residents that cater for day-to-day needs.	**C2.**	Habitable living areas (such as lounge room, kitchen, dining and bedroom) are to be located to allow general observation of the street and communal open space.
		C3.	Building entry points and internal entries to living areas are to be clearly visible from common spaces.
		C4.	The communal indoor living area has a transparent internal door to enable natural surveillance for resident circulation.
		C5.	A boarding/co-living room is encouraged to have the following facilities; however, is not required to by State Environmental Planning Policy (Housing) 2021: a. ensuite (which may comprise a hand basin, toilet and shower) b. laundry (which may comprise a wash tub and washing machine) c. kitchenette (which may comprise a small fridge, cupboards and shelves and microwave)
		C6.	30% of all bedrooms are recommended to have access to private open space with a minimum area of 4m² in the form of a balcony or terrace area.
		C7.	The following communal facilities are to be provided: a. living area b. kitchen c. dining d. outdoor open space e. bathrooms f. laundry (where clothes washing facilities not provided in individual rooms) g. outdoor clothes drying area

Objective		Control	
		C8.	The communal indoor living area can include a dining area but cannot include bedrooms, bathrooms, laundries, reception area, storage, kitchens, car parking, loading docks, driveways, clothes drying areas, corridors and the like.
		C9.	The communal indoor living area shall have: a. whichever is greater - a minimum area of 20m² or 1.25m² per resident; and b. a minimum width of 3m
		C10.	The communal indoor living area shall be located: a. near commonly used spaces, such as kitchen, laundry, lobby entry area or manager's office b. adjacent to communal open space c. to receive a minimum 3 hours solar access to at least 50% of the windows during 9am and 3pm in June d. on each level of a multi-storey boarding house, where appropriate e. where they will have minimal impact on bedrooms and adjoining properties
		C11.	Communal outdoor open space shall be located and designed to: a. receive a minimum 2 hours of solar access to at least 50% of the area during 9am and 3pm on 21 June b. be provided at ground level in a courtyard or terrace area c. provide weather protection d. incorporate 50% soft landscaping of the area e. be connected to communal indoor spaces, such as kitchen or living areas f. contain communal facilities such as a toilet, outdoor drying, barbecues, seating, and pergolas where appropriate g. be screened from adjoining properties and the public domain
		C12.	Communal bathroom facilities are provided and are to have: a. accessibility for all residents 24 hours per day, 7 days per week

Objective		Control	
			b. a minimum of one 1 wash basin with hot and cold water c. a minimum of 1 toilet for every 7 residents or part thereof for each occupant of a room that does not contain an ensuite
		C13.	Communal laundry facilities are provided and are to have: a. a minimum of 1 x 5kg capacity automatic washing machine and one domestic dryer for every 12 residents or part thereof b. a minimum of 1 large laundry tub with hot and cold running water **Note:** These facilities are not required if individual washers and driers are provided.
		C14.	Communal outdoor clothes drying facilities are provided and are located to: a. not be visible from the public domain b. have appropriate levels of solar access c. not comprise the usability of space for its intended function